



File No.: EXP202103924

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 29/09/2021, a complaint was received by the Spanish Agency for Data Protection from claimant 1, and on 18/10/2021 from claimant 2, whose identities are listed in the GENERAL ANNEX. The complaints are directed against the REAL FEDERACIÓN ESPAÑOLA DE BALONMANO with NIF Q2878006B (hereinafter, the respondent). The reasons for the complaint are as follows:

Claimant 1 states that the respondent “is requiring players to present a Covid-19 vaccination certificate or, if applicable, a negative antigen test, contrary to what has been established by the TSJ of the Canary Islands, Andalusia, and Galicia, as it constitutes a violation of the right to privacy (art. 18 of the CE) and a violation of the LOPD.”

Claimant 1 provides a copy of the “HEALTH PROTOCOL REGULAR COMPETITION - REAL FEDERACIÓN ESPAÑOLA DE BALONMANO,” which, according to its introduction, is an updated continuation of the one prepared for the 20/21 season, titled: “Return to Activity,” which begins with “Once the 20-21 season has concluded...”

In it, measures such as the use of masks, social distancing, hand washing, etc., are established.

In section 5: “Care for athletes health control,” it is indicated that “all athletes, coaches, and other participants in the competition are obliged to undergo, with the periodicity and frequency indicated by health and/or sports authorities, the analyses or tests for the detection of COVID-19, informing the COVID Delegation of the Real Federación Española de Balonmano of the results under the conditions established.”

The monitoring of the athlete will imply, based on health data, the prescription for the repetition of some of these tests or others that may be determined.

Likewise, the scope of medical control and health monitoring will affect each and every one of the club's levels in direct and continuous relation to the athletes, and in particular to all technical staff as delegates of health personnel, collaborating personnel, as well as to individuals who may maintain close contact with the athletes, such as drivers, security personnel, and cleaning staff of the facilities, etc.

In section 7, regarding obligations and monitoring of evolution, it is indicated:

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“Each team must present:

1. All team members - athletes and technical staff - must upload to their private area the official vaccination certificate issued by the public health service before the start of the competition.
2. Players who do not have the official complete vaccination certificate or are unable to present it are not authorized to participate in any match; to do so, they must provide a negative antigen test result, taken less than 48 hours before the start of each match day.
3. All members of the squad must present a negative antigen test result taken less than 48 hours prior to the start of the competition.
technical staff.”

Claimant 2 states that, at the beginning of the season, the respondent communicated via email the established health protocol, and that “the affected individuals underwent antigen tests for the first competition, and subsequently, only unvaccinated individuals have been undergoing tests, submitting the test certificates.” They provide a document in which, on 11/09/2021, they requested the respondent to withdraw these measures for violating the rights of the affected individuals, with a response from the respondent on 6/10/2021 maintaining them.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of 5/12, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded on 3/11/2021 to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the provisions of Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 4/11/2021, as evidenced by the receipt in the file.

On 3/12/2021, the respondent states:

1) It has a record of the processing activity RAT, among which is the "Management of Affiliations," where vaccination certificates against Covid-19 or, if applicable, a negative antigen test are listed as special categories of personal data, processed to comply with the "HEALTH PROTOCOL REGULAR COMPETITION - REAL FEDERACIÓN ESPAÑOLA DE BALONMANO" applicable to the official competitions to be held in the 2021/2022 season.

2) It considers that the data it collects are health data, and that to overcome the prohibition of processing presented in Article 9.1 of the RGD, it finds that the following articles of the RGPD would apply to enable its processing:

"9.2.c) the processing is necessary to protect vital interests of the data subject or another natural person, in the event that the data subject is not physically or legally capable of giving consent."

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"9.2.i) the processing is necessary for reasons of public interest in the field of public health, such as the protection against serious cross-border health threats, or to ensure high standards of quality and safety of healthcare and medicinal products or medical devices, based on Union or Member State law that establishes appropriate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy."

The rules of the seventeenth additional provision of the LOPDGDD determine, among others, that the circumstances of Article 9.2 i) alleged by the respondent to process health data are covered by the rules it indicates. Under some of them related to public health during the pandemic in order to prevent the spread of contagion, measures can be established in case of risk to public health, with a duration that shall not exceed the time required by the risk situation that motivated them.

Furthermore, it mentions to cover the field of health treatments those of the rules referred to in the seventeenth additional provision of the LOPDGDD, in its section 1 interpreted as indicated by the Legal Advisory Report of the AEPD 101/2019, which determines that [...] the content of the seventeenth additional provision of the LOPDGDD must be considered that although a closed list is established, this circumstance does not prevent the processing of health data from being covered by other rules not cited therein, as long as one of the circumstances provided for in Article 9.2 of the GDPR is met and the regulation established for this purpose has the rank of law and complies with the guarantees that the Constitutional Court considers essential when we are dealing with the processing of special categories of data.

Moreover, "the RFEBM, as the data controller, has determined the legal basis based on Article 6.1 GDPR to support and legitimize the processing of vaccination certificates against Covid-19," indicates VARIOUS rules and protocols:

- Organic Law 3/2013, of 20/06, on the protection of the health of athletes and the fight against doping in sports activities, Articles 3.1 and 9. The first, as a set of actions that public authorities require, promote, or carry out, according to their respective areas of competence to ensure that sports practice is carried out under the best conditions for the health of athletes.

- Royal Decree 1835/1991, of 20/12, on Spanish Sports Federations and the Registry of Sports Associations, Article 3.1, which states that "they exercise under the coordination and supervision of the Higher Sports Council, the following public functions of an administrative nature: a) Qualify and organize, where appropriate, the official activities and competitions of state scope. For these purposes,

the organization of such competitions is understood to refer to the regulation of the general framework of the same, as established in the corresponding federative regulations.”

- STATUTES OF THE FEDERATION. “own and delegated competencies,” Articles 36 and 37. - “In the scope of its competencies, the RFEB will exercise the following functions and activities: d) The regulation of handball in its organizational scope.”

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technical, sports, and disciplinary.”

-PROTOCOL FOR ACTION FOR THE RETURN OF OFFICIAL COMPETITIONS OF STATE SCOPE AND NON-PROFESSIONAL CHARACTER (SEASON 2020-2021) of the CSD. (Attached as Document No. 4), signed according to the cover page, by: “all Autonomous Communities, Spanish Federation of Municipalities and Provinces, Spanish Sports Federations, Association of Spanish Sports, Spanish Paralympic Committee, Spanish Olympic Committee, and other sports stakeholders and competition organizers integrated into the Task Force for the Promotion of Sports of the CSD.”

This protocol establishes:

- “Section 4. Procedure [...] Each FDE may have its own “reinforcement protocol,” mirroring the current one, in which all points of this Protocol will be reflected, as well as, where applicable, the specifications or particular aspects of each discipline, modality, or sports specialty. The CSD will continue to validate these “own reinforcement protocols” of all FFDDEE. The CSD must validate the protocols submitted by the FFDDEE within a maximum period of 10 calendar days, when possible (the reasons for any contrary decision will be accredited), from the time the corresponding FDE presents it, being understood as approved if the CSD does not validate it within that period.”

- “Section 8,” relating to “Medical examinations prior to any competition” (page 10 of the aforementioned Protocol), the following: - “8. Medical examinations prior to competition. Given the evolution of the COVID-19 pandemic, the CSD recommends that in all competitions organized by the FFDDEE (without prejudice to conveying this recommendation to other organizers), at the start of pre-season training or, failing that, 72 hours before the start of competitions, a specific COVID-19 test be conducted, the purpose of which will be to ascertain the situation of the athletes and members of the registered technical teams, and the potential early detection of possible positives or outbreaks. Aspects such as the type of test to be performed, its funding, the assessment of its usefulness, and whether it should be conducted more times subsequently (including through a mechanism of unannounced random tests) will be determined based on health criteria, within the framework of existing coordination mechanisms with the Autonomous Communities. These will regularly analyze the evolution of infections in these sports competitions.”

- As Document 5, it provides the same “Health Protocol published by the Medical Services of the RFEBM, which establishes preventive measures to address the health crisis caused by COVID-19” that Claimant 1 submitted. The respondent states that “it is inferred from the reading of the protocol itself that the preventive measure consisting of the requirement of the “COVID passport,” or a negative antigen test has as its main purpose to ensure a sports competition with the highest safety and prevention measures, and temporarily considering the evolution of the epidemiological situation derived from COVID-19 in force at each moment.

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3) The respondent states that the purpose of the processing is recorded in the registry of processing activities (RAT), which it provides as Document 6. It appears under: “management of affiliations,” which are carried out for the following purposes:

“To carry out all necessary management to manage the affiliation of players, coaches, delegates, and clubs in the R.F. SPANISH HANDBALL.”

“To comply with the “regular competition protocol with the necessary security and prevention measures” that are considered necessary under the current circumstances, to enable the competitive practice of our sport, which will also require constant updates based on the evolution of the epidemiological and health situation existing during the 21-22 season, for which certain health data will be processed.”

In “categories of data:

- Name and surname, DNI/CIF/identification document, personal registration number, Social Security/Mutuality number, address, signature, and phone number.
- Special categories of data: health data. COVID-19 vaccination certificates and presentation of antigen tests.
- Personal characteristics data: Sex, marital status, nationality, age, date and place of birth, and family data. Family circumstance data.
- Economic-financial data: Economic data of payroll, credits, loans, guarantees, tax deductions, cessation of wages corresponding to the previous job (if applicable), judicial withholdings (if applicable), other withholdings (if applicable). Banking data.
- Systems used for processing: automated systems: management of affiliation through ISQUAD.
- Retention periods specify that for “COVID-19 vaccination certificates, due to the current risk of contagion situation we are in, they will be kept as long as it remains absolutely necessary to maintain health prevention and safety measures, and under the supervision of the official medical services of the RFEBM, and applicable to the official competitions to be held in the 2021/2022 season.”

4) It states, regarding the “APPROPRIATE GUARANTEES IMPLEMENTED FOR THE PROTECTION OF THE RIGHTS AND FREEDOMS OF PERSONS,” that it had measures “of security associated with regulatory compliance,” such as:

- Advice on the matter from an external company.
- Information on confidentiality duties provided to employees and security measures in the performance of their functions. They provide Document 7 in this regard, which contains a declaration of the terms of “information and confidentiality” for employees. (205 et seq.)

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- It cites that the “COVID Delegate,” an employee of the defendant, “has access to the certificates for the purpose of their validation,” having signed the confidentiality agreement, “committing not to disclose to any person outside the Federation, without their consent, the data to which they have had access in the performance of their functions as a member of the COVID-19 team, except in cases where it is necessary to comply with obligations imposed by laws or regulations that are applicable or when required by order of the competent authority.”

- Training sessions on data protection for employees.

- RISK ANALYSIS. It provides document 8, version 1, dated 29/11/2021, which states:

In the section on processing “Management of memberships” (T05), the purpose indicated in the RAT is transcribed, “in the number of affected subjects, from 10,000 to 100,000,” in: “Will data of persons with disabilities or any other group in a situation of special vulnerability (e.g.: minors under 14 years, elderly, persons at risk of social exclusion) be specifically used?” “Yes,” and in data transfers it states “yes,” being included in the global group, “Public administrations with competence in the matter,” regarding retention periods, it notes that there are defined retention periods although the time is not specified, concluding:

“Processing T05 falls within the exception number 3 based on the existence and to comply with the Health Protocol published by the Medical Services of the Federation, to ORDER 1244/2021, of 1/10, of the Ministry of Health of the Community of Madrid, which establishes preventive measures to address the health crisis caused by COVID-19, as well as Organic Law 3/2013, of 20/06, on the protection of

the health of athletes and the fight against doping in sports activities.

The same document includes: "risk management" (49 and following) for all treatments.

"In the section on the legitimacy of treatments, it is resolved that all treatments are carried out with one of the legitimizing bases of Article 6.

In conclusions, it is noted at a global level of processing operations, not by treatment activity.

- "Information on data protection," which is drafted clearly, simply, and transparently. The "privacy policy" of the "ISQUAD platform" is attached, in DOCUMENT 9 "which is in a visible and accessible environment, which every member must accept prior to filling out the membership form."

"The management of the processing of COVID Certificates through the "Isquad platform" is carried out by an external company 3OES LEADING SOFTWARE, S.L., holder of the software, with which the corresponding data access contract on behalf of third parties has been signed, with clauses in accordance with Article 28 of the GDPR." A copy of the contract is attached as document No. 11.

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It provides document 20, which certifies that access to the platform is granted to each participant with a username and password, and that the vaccination certificate and COVID antigen test results are stored. "Access to the health documentation is authorized only for the interested party and the Federative Delegate-Responsible for COVID19 control, who, once the document has been viewed and its suitability verified, issues a validation that certifies that each person has met the requirement set forth in the required conditions, but without such validation specifying the type of document provided by each person."

As "measures associated with information security," it indicates "the method of identification and authentication on the ISQUAD platform:

"Each athlete accesses their private area by entering a username and password, allowing them to upload their official vaccination certificate issued by the Public Health Service before the start of each competition, to which only the athlete presenting such certification and the 'COVID' delegate will have access in order to validate and communicate to the communication representative that this requirement has been met prior to the development of the competition. In the case of minors, access to this private area will be through their legal representatives. This way, access to such information by unauthorized third parties is prevented.

From DOCUMENT 9, "PRIVACY POLICY," version 29/11/2021, it provides information on "data processing collected through the ISQUAD platform," which contains forms with mandatory data to be completed, and that the RFEBM may collect through use, navigation on the platform, via email, or due to the contractual relationship.

The document refers to the purpose, legitimacy, and recipients of (the following are highlighted):

"3. Registration and affiliation of users belonging to any of the federative bodies of the RFEBM, which includes:

- Managing their registration as a user belonging to any of the federative bodies of the RFEBM in the capacity they hold within it.
- Once the registration has been processed, their data will be processed for the completion of the procedures derived from the correct management between you and the RFEBM.
- Complying with the regular competition protocol with the security and prevention measures deemed necessary under the current circumstances, to enable competitive practice of our sport during the 21-22 season, for which certain health data will be processed."

"Legitimacy. The legitimacy of the processing of your data derives from the execution of a contract/legal act, the consent of the interested party, legitimate interest for both parties, or based on compliance with a legal obligation: - Law 10/1990, of 15/10, on Sports. - Health Protocol published by the Medical Services of the RFEBM to comply with Orders 572/2021 of 7/05, and from the Health Department of the C/ Jorge Juan, 6, 28001 – Madrid, by which preventive measures are established to address the health crisis caused by COVID-19, once the extension of the State of Alarm declared by

RD decree 926/2020 of 25/10, BOCM 8/05/2021, was rendered ineffective by the seventy-fifth section of Order 1244/2021, 1/10, of the Health Department, by which preventive measures are established to address the health crisis caused by COVID-19 ("B.O.C.M." 2/10), effective from 4/10/2021.

Point 5 addresses the exercise of rights.

In DOCUMENT 10, it provides the "Informative Clause ON DATA PROTECTION" signed by the affiliates "latest version 29/11/2021" (players, coaches, delegates, clubs, etc.).

It informs that the respondent is responsible for the processing of their personal data for the purpose of carrying out all necessary management to manage their affiliation in the RFEB.

"We also inform you that the processing of your special data, for example, health, will be carried out exclusively when necessary and under the supervision of the official medical services.

"The legitimacy of the processing of your data derives from the execution of a contract, consent of the interested party, compliance with a legal obligation, or based on the legitimate interest for both parties. The recipients of your data will be the various departments of the Federation, as well as third parties to whom we transfer your data, when it is lawful according to the provisions of the current data protection regulations or those communications necessary for the proper performance of the functions of the RFEB."

Document 12 contains the "data custody and conservation protocol."

In document 13, they provide a copy of the "Protocol for action in the event of security breaches."

Copy of document 14, with procedures for "password policy and access control."

Copy of document 15, "procedure for selecting data processors."

Procedure for action upon the exercise of rights, in document 16.

- It provides a copy of the communication from the AEPD to the respondent dated 14/05/2021 with the registration of the designation of DPD.

In document 19, appointment of the DPD.

5) Regarding the categories of interested parties and the information provided about data processing, it indicates that it concerns "All members of the teams (athletes and technical staff), and the information about the processing of their data is included in C/ Jorge Juan, 6, 28001 – Madrid."

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documents 9 and 10."

Regarding the Data Protection Impact Assessment, EIPD, it indicates:

"The processing 'management of affiliations' insofar as it involves specially protected data such as health data and data of particularly vulnerable subjects such as minors, and considering the criteria of the AEPD, to the extent that if two or more of the criteria mentioned in the lists presented are met in a processing operation, it is more likely to pose a high risk to the rights and freedoms of the data subjects, leads us to consider that there are sufficient factors to determine the need to carry out an impact assessment, in the terms provided for in the GDPR, for the processing operation described as 'management of affiliations.' However, the AEPD has established certain cases in which it is not necessary to carry out an EIPD, even if at least two of the cases from these lists are met, including compliance with a legal obligation, such that Processing T05 'Management of Affiliations' would fall within the exception number 3 contemplated in the following list prepared by the AEPD

<https://www.aepd.es/sites/default/files/2019-12/ListasDPIA-35.5l.pdf> (GUIDELINE LIST OF TYPES OF PROCESSING THAT DO NOT REQUIRE A DATA PROTECTION IMPACT ASSESSMENT ACCORDING TO ARTICLE 35.5 GDPR)

"Processing that is necessary for compliance with a legal obligation, compliance with a mission carried out in the public interest or in the exercise of public powers conferred to the controller, provided that the same legal mandate does not require an EIPD to be carried out, and as long as a complete EIPD has already been conducted."

It continues to indicate that the respondent states that it is "based on the existence and to comply with the health protocol published by the Medical Services of the Federation, which establishes preventive measures to address the health crisis caused by COVID-19. For all the above, it is considered that the RFEBM does not have the need to carry out an in-depth EIPD. We refer in this regard to the risk analysis report (attached as document no. 8)."

6) The RFEBM "has decided, unless stated otherwise by the Control Authority, to continue with the

request for COVID-19 vaccination certificates, thus complying with the Regular Competition Protocol with the security and prevention measures deemed necessary under the current circumstances, to enable the competitive practice of our sport, which will also require constant updates based on the evolution of the existing epidemiological and health situation, without violating data protection regulations or the fundamental rights of participants in the official handball competitions organized and supervised by the RFEBM.”

- A certificate dated 23/11/2021, from the head of the medical services is attached as document no. 21. It outlines the reasons justifying the need to present such Covid-19 certificates “as a preventive measure and for the protection of the health of all those involved in the sports competitions.”

THIRD: On 29/12/2021, due to the passage of three months, the processing continues in accordance with the provisions of Article 65.5 of the GDPR.

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FOURTH: On 6/09/2022, the Director of the AEPD agreed to:

“INITIATE SANCTIONING PROCEDURE against the ROYAL SPANISH HANDBALL FEDERATION, with NIF Q2878006B, for the alleged infringement of the GDPR, articles:

- 6.1, in accordance with article 83.5.a) of the GDPR, classified for prescription purposes in article 72.1.b) of the LOPDGDD.

- 9, in accordance with article 83.5.a) of the GDPR, classified for prescription purposes in article 72.1.e) of the LOPDGDD.

- 13, in accordance with article 83.5.b) of the GDPR, classified for prescription purposes in article 74.a) of the LOPDGDD.”

“for the purposes provided in art. 64.2.b) of law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), three administrative fines are imposed on the ROYAL SPANISH HANDBALL FEDERATION, in application of article 58.2.i) for the infringement of:

- article 6.1 of the GDPR, a fine of 10,000 euros may be imposed.

- article 9 of the GDPR, a fine of 20,000 euros may be imposed.

- article 13 of the GDPR, a fine of 7,000 euros may be imposed.

All of this, without prejudice to what results from the instruction.”

FIFTH: On 21/09/2023, the respondent made the following allegations:

1) Requests to assess as stated in the response to the requirements, as a basis for subsidiary legitimacy the existence of a vital interest, as established in recital 46 of the GDPR (...) “when the processing cannot be manifestly based on a different legal basis” (...), as is the case presented here. It reproduces article 6.1.d) of the GDPR as a preventive measure to avoid possible contagion situations among the other participants in the sports competitions as is the case we are dealing with, which could hinder or prevent their development.

2) Regarding the Agency's statement that “these medical data are not related to the affiliation or to the medical recognition that may take place to obtain it,” it is necessary to clarify the following issues: The so-called “affiliation” is nothing more than the registration in the system through the incorporation into the IT platform of the R.F.E.BM., a procedure that must be carried out personally by each user, only once, and for which only the provision of the DNI in the individualized private area is required, and optionally, a photograph.

The registration of minors must be carried out by their parents, guardians, or legal representatives, who must expressly state their consent.

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Sentiment and authorization. Under no circumstances, contrary to what is indicated by this Agency (Legal Basis II, page 16), does "affiliation" require the provision of any type of medical, health, or personal data from each individual.

The application for "Federal License" occurs in each sports season by those "affiliated" individuals who wish to participate in official state-level handball competitions, registered in one of the teams that hold the sports rights in each of the different competitions organized by the respondent. In the process of obtaining the license, each athlete must provide, always through their private area, the documentation required based on their team's affiliation to a specific competition category. Among the documentation required from each athlete is the certification of having passed the medical examination and being declared "fit" for the practice of handball (a document that does not include any type of personal medical or health data, but is limited to qualifying the individual as "fit" or "unfit"). Furthermore, during the 2021/22 season, and as a consequence of the COVID-19 pandemic, athletes are required to provide proof of vaccination or, alternatively, the accreditation of a negative COVID-19 diagnostic test. Both medical documents are necessary for each athlete to obtain the Federal License, contrary to what is stated by this Agency in the final paragraphs of page 15 of the Resolution, in the context of what is presented in Legal Basis Second.

The RFEBM, contrary to what this Agency has stated, does not believe that it has dealt with "any type of health-related data for the future."

These affiliation management data are specific and concrete, collected and reported for a specific purpose, which has allowed that, at the moment when health circumstances have evolved, such data are not required from any participant in state competitions. On another note, it is also necessary to clarify that, contrary to what seems to be indicated in the second paragraph of page 15 of the Resolution, the requirement to present the vaccination certificate with a complete COVID-19 vaccination schedule occurs in the official state-level sports competitions organized by the respondent, at the beginning of the 2021/22 sports season, "that is, from September 1, 2022, nine months after the first COVID-19 vaccine was administered in Spain." (It may be that the respondent refers to 1/09/2021, given that the date of the first COVID vaccine was December 27, 2020; likewise, the 21/22 season usually refers to its start date as the first date.)

Finally, it should be noted that, in addition to the legal norms already cited in previous provisions, "the actions of the R.F.E.B.M. are supported by the provisions expressly stated in Article 3 of Organic Law 3/1986 of April 14, on special measures in public health, which has been developed and executed by the regulatory provisions of the Autonomous Communities expressly approved, within the scope of their respective constitutional competencies, in relation to the requirement of health documentation and the practice of competitive sports."

Regarding the form and content of fulfilling the right to information for those affected in the collection of data in the "affiliation information clause" (Article 13), the last paragraph of the attached affiliation clause has not been taken into account.

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In the response to the information request from this Agency dated 03/12/2022, as document number 10, it is stated at the end: "You have the right to access, rectify, and delete your data, as well as other rights recognized as explained in the additional information that you can find in our Privacy Policy at www.rfeb.com."

From reading this clause, it can be verified that it provides information as established by Article 11 of the LOPDGDD and various guides from the AEPD itself (model guide-informative clause; Guide for the Citizen), through a first layer of basic information, including the following points:

- a) The identity of the data controller and, if applicable, their representative.
 - b) The purpose of the processing.
 - c) The possibility of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679.
- And in a second layer, the remaining elements referring to their privacy policy, link (rfeb.com) as

document number 9 submitted, which are:

- a) The identity and contact details of the controller and, if applicable, their representative;
- b) The contact details of the data protection officer, if applicable;
- c) The purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) The right to lodge a complaint with the supervisory authority;
- e) The recipients or categories of recipients of the personal data, if applicable;

Regarding the affiliation clause, in accordance with what this AEPD indicated in its initiation of sanctioning procedure regarding the “affiliation information clause” (document 10) for not defining the purpose of the processing by doing so generically as “data of a special nature, for example, it has been rectified.” In accordance with what this Agency indicated, to comply with the requirement of describing the purpose in a specific and explicit manner and indicating the legal basis that allows the processing of the two managements: affiliation and health data in a differentiated manner. They attach document number 2, “affiliation information clause” with the detail:

“Purpose 1: To carry out all necessary management to manage your affiliation in R.F. ESPAÑOLA DE BALONMANO. Legal basis that legitimizes this processing: execution of a contract.

Purpose 2: To carry out medical examinations and fitness tests that may take place to obtain the federative license; we will process health data, which will be carried out exclusively when necessary and under the supervision of official medical services. Legal basis that legitimizes this processing: compliance with a legal obligation.

...

The recipients of your data will be the various departments of the Federation, as well as third parties to whom we transfer your data, when it is lawful according to the provisions.

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set forth in the current regulations regarding data protection or those communications necessary for the proper performance of the functions of the R.F. ESPAÑOLA DE BALONMANO.

You have the right to access, rectify, and delete the data, as well as other rights recognized as explained in the additional information that you can find in our Privacy Policy at www.rfebm.com.”

1)

As of the end of the 2021/22 season, and for the obtaining of the corresponding Federal Licenses for the 2022/23 season, the requirement to provide any type of data related to COVID-19 vaccination or regarding analytical results in any of the sports competitions organized has ceased, as a consequence of the positive evolution and recommendations made by health authorities.

4)

Requests, if applicable, that a warning be issued, taking into account the rectification of the clause, and states that it is committed to rights and freedoms and compliance with data protection regulations.

5)

The R.F.E.BM. disagrees with the consideration that the requirement for the referred health documentation produces “affection” to any fundamental right, citing various rulings from the Supreme Court regarding administrative measures limiting rights derived from the state of alarm to prevent the spread of infections. It refers to those from the Administrative Litigation Chamber of the Supreme Court, in Judgments 1112/2021 of 14/09 and 1412/2021 of 14/12, in which it is expressly indicated that: “the measure of presenting certain documentation (certificate of complete vaccination, negative diagnostic test for active infection (PDIA) or antigen test, and certificate of having recovered from the disease from day 11 to 180), for entry into certain establishments, examining the proportionality.”

6)

Requests the annulment of full right, considering that the functions of “instruction” and “resolution” are not differentiated when making decisions regarding the practice of tests. (Agreement Third) when it signifies the incorporation into the sanctioning file, for evidentiary purposes, of the complaint filed by

the claiming party and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection.

Furthermore, it is sanctioned outright, without procedure, as indicated in device four, for the purposes of article 64.2.b) that the sanctions are imposed.

SEVENTH: On 7/05/2023, a resolution proposal was issued with the following text:

“1-That the Director of the Spanish Agency for Data Protection sanctions the REAL FEDERACIÓN ESPAÑOLA DE BALONMANO, with NIF Q2878006B, with an administrative fine for the following infringements of the GDPR:

- a violation of article 9 of the GDPR, in accordance with article 83.5.a), classified as very serious for the purposes of prescription in article 72.1.e) of the LOPDGDD, with a fine of 20,000 euros.

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- A violation of Article 13 of the GDPR, in accordance with Article 83.5.a), classified as minor for the purposes of prescription in Article 74.a) of the LOPDGDD, with a fine of 7,000 euros.

2- That the Director of the Spanish Agency for Data Protection archives the violation of Article 6.1 of the GDPR due to the existence of a legal basis for data processing.

EIGHTH: On 22/05/2023, the respondent makes the following allegations:

1- They cite the ruling of the TSJ of Madrid, contentious-administrative appeal 359/2022 in document 1, in a procedure for the protection of fundamental rights, also against the same respondent, related to the official championship of territorial selections of the RFEBM, held in Murcia, as support for the enabling of the exception for the processing of health data.

They consider that it follows from the same:

- The Federations exercise public functions by delegation of an administrative nature, acting as collaborating agents of the Public Administration, including those related to qualification, organization of activities, and official sports competitions at the state level, under the coordination and supervision of the Higher Sports Council. The organization of these is understood to refer to the regulation of their general framework. “Given the complexity of organizing a competition, only those aspects that are truly important and significant should be reserved for the delegation.”

- Said protocol constitutes a reference framework for these competitions, enabling the different Federations to develop specific competition reinforcement protocols, which must be submitted to the CSD for approval, which will be understood as granted if no express response is received from the CSD within ten days.

- The administrative powers that justify the adoption of the measures described in the protocol that involve the restriction of fundamental rights of citizens are legitimized by Article 43 of the Spanish Constitution, which, after recognizing in its first section the right to public health, establishes in its second section that: “It is the responsibility of public authorities to organize and oversee public health through preventive measures and the necessary provisions and services. The Law will establish the rights and duties of all in this regard.” The basic development of this constitutional principle guiding the State's social policy is found in Law 14/1986, of 25/04, General Health Law, in Organic Law 3/1986, of 14/04, on Special Measures in Public Health, issued by virtue of the competential attribution in health and hygiene made by Article 148.1.21 CE to the Autonomous Communities, and in Law 41/2002, of 14/11, basic regulatory law of patient autonomy and rights and obligations regarding information and clinical documentation.

- The ruling holds that there is no violation by this protocol of personal privacy, in the modality of data protection, the requirement of a certificate.

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of complete vaccination, surpasses the suitability, necessity, and proportionality filter, “in that it is one of the least restrictive measures for the fundamental rights of the participants, and even though other measures could have been adopted—negative tests or certificates of recent recovery from the disease—the option is neither illogical nor irrational, and is minimally invasive in the individual sphere, allowing for the development of sports competitions that otherwise could not have taken place.”

They consider that, based on the aforementioned, the protocol fits as an enabler based on articles 9.2 g) and 9.2 i) of the GDPR, as the powers of the sports federations are derived from the administration, through the CSD, based on the provisions of articles 30.1 and 33.1.a) of the Sports Law, and therefore are supported by a norm with the rank of law, understanding that an obligation is not imposed, but rather the fulfillment of certain requirements to be able to access/participate in a private activity.

2- For the purposes of the infringement of article 13, this agency “has not taken into account nor has it assessed the existence of an error regarding the additional information referred to in the last paragraph of the affiliation clause attached to the response to the information request from this Agency dated 03/12/2022” which contains the second layer, at www.rfeb.com.

They request that the rectification be taken into account following the initiation agreement of the specific description of the purpose and the differentiated legal bases of health data and those of affiliation management. The interpretation that the first level must contain or is recommended to include details of the purposes of the processing, the identity of the data controller, and a description of the rights of the data subject, emphasizing the information with greater impact for the data subject and the processing that might be more surprising for the affected party, are not obligations demanded by the norm and are very complicated subjective considerations to analyze in each case.

They request the filing or reduction of the proposed sanction.

NINTH: From the actions carried out in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

1) The respondent has a “HEALTH PROTOCOL REGULAR COMPETITION - ROYAL SPANISH HANDBALL FEDERATION” (RFEB) for the 2021-22 season, undated, which is also available on its website, containing measures to combat COVID-19 to ensure a sports competition with safety and prevention measures, taking into account the epidemiological situation at each moment. In point 5, it establishes, among other measures, the obligation for athletes, coaches, and other participants in the state-level competition, including individuals who may have close contact with the athletes (technical staff, drivers, security personnel, and cleaning staff), to undergo, with the periodicity and frequency indicated by health and/or sports authorities, the analyses or tests for the detection of COVID-19, notifying the results to the COVID Delegation of the RFEB under the conditions established. In point 7, it provides for the obligation that all team members, both athletes and technical staff, upload to a management platform,

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“to their private area, the official vaccination certificate issued by the Public Health Service” before the start of the competition, and those who do not have it, or are not in a position to present it, must upload to the platform a “negative antigen test result from less than 48 hours before the start of each match,” otherwise, they will not be authorized to participate in any match.

In point 8, it is indicated that the protocol is mandatory, and non-compliance may result in a disciplinary infraction subject to penalties, which are specified in the same document.

The protocol of the respondent, as stated by the respondent, is based on the PROTOCOL FOR THE RETURN OF OFFICIAL STATE COMPETITIONS OF A NON-PROFESSIONAL NATURE (2020-2021 SEASON) from the Higher Sports Council (CSD), approved, according to a press release on the EL ESPAÑOL newspaper website, on 10/09/2020, with no updates recorded for the 21/22 season. It indicates that it is a minimum framework, basic for health and safety in federated sports, mandatory to

reactivate federated sports and subject to any ministerial orders issued by the Ministry of Health, being permanently subject to evolution also by the health factors determined by the competent authorities. "Each FDE may have its own 'reinforcement protocol,' mirroring the current one, in which all points of this Protocol will be reflected, as well as, where applicable, the specifications or particular aspects of each discipline, modality, or sports specialty." In section 8, it indicates the "recommendation" for medical examinations prior to competitions (not matches) organized by the Federations (without prejudice to conveying this recommendation to other organizers) that at the start of training, preseason, or, failing that, 72 hours before the start of the competitions, a specific COVID-19 test be conducted, the purpose of which will be to know the situation of the athletes and members of the registered technical teams, and the potential early detection of possible positives or outbreaks. Neither in the CSD protocol nor in that of the respondent is any health authority mentioned.

"4-procedure: Once this Protocol is in effect, each FDE may have its own 'reinforcement protocol,' mirroring the current one, in which all points of this Protocol will be reflected, as well as, where applicable, the specifications or particular aspects of each discipline, modality, or sports specialty. The CSD will continue to validate these 'reinforcement protocols' of all FFDDEE.

"The CSD must validate the protocols submitted by the FFDDEE within a maximum period of 10 calendar days, when possible (the reasons for otherwise will be accredited), from the time the corresponding FDE submits it, being understood as approved if the CSD does not validate it within that period."

2) In the ACTIVITY TREATMENT REGISTER (RAT) of the respondent, "Management of Affiliations" is listed, with a dual purpose:

- a) Management of the affiliation of players, coaches, delegates, and clubs.
- b) Compliance with the competition protocol with security and prevention measures deemed necessary under the current circumstances for

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to enable competitive practice in the 21/22 season, for which health data will be processed.

The respondent adds that the data is collected through the ISQUAD platform, software owned by a third company with which it has a data access contract. Through this platform, it provides information to the staff of its Federation for affiliation, which must be accepted prior to filling out the affiliation form managed on the same platform.

1) The respondent specifies that the prohibition on processing health data, which it acknowledges processing, is to comply with its "health protocol," developed by the Medical Services of the RFEBM, applicable to official competitions during the 2021/2022 season, aimed at reducing the spread of COVID-19. The respondent stated that the lifting of the prohibition on processing health data is enabled by the application of the GDPR in articles 9.2.c) and 9.2.i), and in allegations to the proposal also article 9.2.g) of the GDPR.

It added that, as a basis for legitimizing the same processing, articles 6.1.c) and 6.1.d) of the GDPR would apply, indicating regarding the first that various regulations empower it to organize and regulate the competition (Sports Law, Statutes, and Royal Decree 1835/1991 of 20/12 on sports federations and the Registry of sports associations, as well as Organic Law 3/2013 of 20/06 on the protection of the athlete's health and the fight against doping in sports activity).

2) To the "Isquad platform," with which the respondent manages the "affiliation" of athletes, users (players, coaches, delegates, contact persons) access with a username and password in the "private area," where the vaccination certificate and antigen tests are uploaded and stored. Only the Federative delegate responsible for COVID-19 control of the RFEBAM has authorization to access this documentation, who, upon verifying its suitability, issues a validation certifying that each person has met the required conditions, but without specifying the type of document provided by each person. - although it is implied by its nature that tests and vaccinations have different durations over time regarding expected effects, without explaining how the system works to not require those who provide

vaccination for the next competition to provide it again.

3) Regarding the way to inform the affected parties about the collection of their data, the respondent provides, before the initiation agreement, document 10, information clause, latest version 29/11/2021, in which it states that the respondent is responsible "for the processing of your personal data for the purpose of carrying out all necessary management to manage your affiliation in R.F. ESPAÑOLA DE BALONMANO. Likewise, we inform you that the processing of your special data, for example, health, will be carried out exclusively when necessary and under the supervision of the official medical services." ... "The legitimization of the processing of your data derives from the execution of a contract, consent of the interested party, compliance with a legal obligation, or based on the legitimate interest of both parties. The recipients of your data will be the different departments of the Federation, as well as third parties to whom we transfer your data, when it is lawful according to the provisions of the GDPR."

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provided in the current regulations regarding data protection or those communications necessary for the proper performance of the functions of R.F. ESPAÑOLA DE BALONMANO.

You have the right to access, rectify, and delete the data, as well as other rights recognized as explained in the additional information that you can find in our Privacy Policy at www.rfeb.com."

Despite indicating the responsible party, their contact information is not provided.

The respondent stated in their allegations that they informed in layers, and the second layer was found in the link contained at www.rfeb.com, which corresponds to document 9 "privacy policy," which includes, among other things, the contact details of the DPD and the right to file a complaint with a supervisory authority.

Considering that from the end of the 21/22 season (in which the system for providing health data for the competition was indeed implemented), that is, in September 2022, the respondent has stated that they no longer require any type of data regarding COVID-19 vaccination or tests, that the initiation agreement is dated 6/09/2022, in allegations to the initiation agreement, on 26/09/2022, the respondent stated that document 10 regarding information on the collection and processing of data was modified after receiving the initiation agreement to differentiate the information on "affiliation." They attached document number 2, "affiliation information clause," distinguishing the differentiated entity of COVID health data and its purpose:

"Purpose 1: To carry out all necessary management to manage your affiliation with R.F. ESPAÑOLA DE BALONMANO. Legal basis that legitimizes this processing: execution of a contract.

Purpose 2: To carry out medical examinations and fitness tests that may take place to obtain the federative license; we will process health data, which will be carried out exclusively when necessary and under the supervision of official medical services. Legal basis that legitimizes this processing: compliance with a legal obligation.

4) Claimant 2 states that, at the beginning of the 21/22 season, the respondent communicated via email to the federated members the established health protocol, and that "the affected individuals underwent antigen tests for the first competition, and subsequently only unvaccinated individuals have been performing the tests, providing the certificates of the tests." They provide a document in which on 11/09/2021, they requested the respondent to withdraw these measures for violating the rights of the affected individuals, with a response from the respondent dated 6/10/2021 maintaining them.

The respondent also stated in the response to the transfer, 3/12/2021, that they would continue processing health data for each competition. After the initiation agreement signed on 6/09/2022, they indicated that due to the positive evolution of the pandemic and based on the recommendations made by health authorities, starting from the end of the 2021/22 season, September 2022, they had ceased to require the provision of any type of data related to COVID-19 vaccination or regarding analytical results in any of the sporting competitions they organize.

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I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Regarding the allegations of nullity of the procedure, due to the initiation agreement containing the reference for documentary incorporation, for evidentiary purposes, not for the practice of evidence that has not taken place, it must be understood that such documentation is part of the file and its citation, although it does not seem necessary since it is part of it, is merely clarifying, without causing any confusion between the phases, which in any case the respondent does not explain in more detail. Regarding the sanction that is considered to arise from the literal text of the dispositive part, without prejudice to the fact that the expression "is imposed" is a factual error, and this can be clearly seen because it is linked to the reference to Article 64.2.b) of the LPCCAP—referring to the initiation agreement—adding "all this, without prejudice to what results from the instruction," deducing that no sanction has been imposed, much less without a procedure. Therefore, these allegations cannot be upheld.

III

Regarding the data collected by the respondent through vaccination certificates and antigen tests uploaded to the platform that manages them, they would fall under the concept of data processing, defined in Article 4.2 of the GDPR as:

"any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure, or destruction;"

Article 6.1 of the GDPR establishes the circumstances that allow for the lawful processing of personal data.

1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

In this case, data of affiliated athletes who are going to participate in the competition is being

processed, which, moreover, due to the unforeseen circumstances of COVID-19, declared a global pandemic by the WHO on March 11, 2020, aims to reduce its spread upon the return of competitions. This "return to official competitions of a state and non-professional nature, season 20/21," was approved in the form of a protocol by the CSD on September 14, 2020, noting that it was before the date when the first vaccine was administered in Spain, which dates from December 27, 2020, and therefore this measure could not be referred to in such protocol. In this case, as indicated by claimant 2, at the beginning of the 21/22 season, information was provided regarding the protocol established by their Federation, and data collection began, exercising the right to withdraw the measures on September 22, 2021.

The GDPR defines health data as: "... personal data related to the physical or mental health of a natural person, including the provision of health care services, which reveal information about their health status;" (Article 4.15 GDPR).

In this case, the purpose of the affiliation regarding the annual license for competition must be distinguished, along with the necessary data that have specificities in their legal regime, from the purpose of processing that health data, which in the 21/22 season is collected for a specific purpose, in this case to prevent contagion during the development of competitions.

The legal regime of the necessary basis for legitimizing the data collected to prevent COVID-19 in competitions, as stated by the respondent, is the

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of Article 6.1(c) of the GDPR: "the processing is necessary for compliance with a legal obligation to which the data controller is subject," adding that these are requirements of the organization of the competition for which it has competence according to the regulations cited. In this regard, it should be noted that such competence may extend to the requirement of vaccination, provided that current regulations are respected, without this power in this case including or supporting the legal obligation basis for processing that the respondent understands, not only because there was no regulation at that time from any authority such as health authorities that compelled the vaccination of this sports collective for these purposes, but also because even in the CSD protocol, no aspect regarding vaccination was recommended. In fact, it was not mentioned, perhaps because the protocol was approved in 9/2020, at least regarding its obligation, nor was there any mention of PCR tests, and ultimately, it was not stated that data would be collected and stored, which in itself already constitutes data processing according to the definitions of the GDPR. The truth is that, in addition to the lack of necessity for processing to comply with a legal obligation, there was no such provision of that magnitude, and as will be developed throughout the proceedings, the respondent's protocol cannot be classified as a legal norm imposing such an obligation. Regarding the term necessity, it is also true that a non-intrusive system could have been opted for, such as merely displaying the health documents enabling competition, which could imply a different scenario regarding the issue.

To recall, Article 8 of the LOPDGDD: "Data processing by legal obligation, public interest, or exercise of public powers," states:

"1. The processing of personal data may only be considered based on compliance with a legal obligation enforceable against the controller, under the terms provided in Article 6.1(c) of Regulation (EU) 2016/679, when such is provided by a legal norm of European Union law or a norm with the rank of law, which may determine the general conditions of processing and the types of data subject to it as well as the transfers that may occur as a consequence of compliance with the legal obligation. Such a norm may also impose special conditions on processing, such as the adoption of additional security measures or others established in Chapter IV of Regulation (EU) 2016/679.

2. The processing of personal data may only be considered based on the performance of a task carried out in the public interest or in the exercise of public powers conferred to the controller, under the terms provided in Article 6.1(e) of Regulation (EU) 2016/679, when it derives from a competence attributed by a norm with the rank of law."

Such law must meet all relevant conditions for the obligation to be valid and binding, and must also comply with data protection legislation, including the requirements of necessity, proportionality, and limitation of purpose. Furthermore, the legal obligation itself must be sufficiently clear regarding the processing of the personal data required.

Therefore, Article 6.1(c) would be applicable based on the legal provisions.

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legal obligations that explicitly refer to the nature and purpose of the processing.

The data controller shall not have undue discretion regarding how to comply with such legal obligation.

Legislation may, in some cases, establish only a general objective, while imposing more specific obligations at a different level, for example, either in derived law, secondary legislation, or in a binding decision of a public authority in a specific case. This may also imply legal obligations under Article 6.1(c), provided that the nature and purpose of the processing are well defined and subject to an appropriate legal basis. Ultimately, in this case, such a legal obligation does not exist, and the basis for legitimacy does not align with the legality of such article.

Regarding the allegations that there are rules that may impose restrictions on the right to health, they are true, but the fact is that no specific obligation has been found in this case.

As for the legal basis for processing for vital interest, Article 6.1(d) of the GDPR states: “necessary to protect vital interests of the data subject or of another natural person,” Recital (46) of the GDPR already acknowledges that, in exceptional situations, such as an epidemic, the legal basis for processing may be multiple, based both on public interest and on the vital interest of the data subject or another natural person.

(46) The processing of personal data must also be considered lawful when it is necessary to protect an essential interest for the life of the data subject or that of another natural person. In principle, personal data should only be processed on the basis of the vital interest of another natural person when the processing cannot be manifestly based on a different legal basis. Certain types of processing may respond to both significant public interest reasons and the vital interests of the data subject, such as when the processing is necessary for humanitarian purposes, including the control of epidemics and their spread, or in situations of humanitarian emergency, especially in the case of natural or human-made disasters.

Article 6.1(d) of the GDPR considers not only that the vital interest is a sufficient legal basis for processing to protect the “data subject,” in this case, the individuals wishing to compete, but that this legal basis may also be used to protect the vital interests “of another or others,” which by extension implies that they may be both unidentified or identifiable persons, even unnamed, if there are any regarding holding an interest worthy of being safeguarded. Furthermore, it does not follow, as stated in Article 6.3 of the GDPR, that the necessity for the legal basis for processing due to vital interest must be established by Union law or the applicable laws of the Member States concerning the data controller.

Analyzing this basis for legitimacy, it is considered that it would cover the processing arising from the pandemic situation in the specific framework of the fight against COVID for federated athletes in order to prevent the spread of infection upon returning to competitions, therefore the alleged infringement of Article 6.1 of the GDPR must be archived.

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Article 9 of the GDPR, “Processing of special categories of personal data,” provides:

“1. The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data concerning health, or data concerning a natural person's sex life or sexual orientation is prohibited.

2. Paragraph 1 shall not apply when one of the following circumstances applies:

a) the data subject has given explicit consent to the processing of such personal data for one or more specified purposes, except when Union law or the law of the Member States provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject;

[...]

c) the processing is necessary to protect vital interests of the data subject or of another natural person, in the event that the data subject is not physically or legally capable of giving consent;

[...]

g) the processing is necessary for reasons of substantial public interest, based on Union law or the law of the Member States, which must be proportional to the objective pursued, respect in essence the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject;

[...]

i) the processing is necessary for reasons of public interest in the area of public health, such as protection against serious cross-border threats to health, or to ensure high standards of quality and safety of health care and of medicines or medical products, based on Union law or the law of the Member States that establishes adequate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy.”

[...]

4. Member States may maintain or introduce additional conditions, including limitations, regarding the processing of genetic data, biometric data, or data concerning health.”

At the same time, the LOPDGDD specifies in Article 9, “Special categories of data”:

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“2. The data processing activities referred to in letters g), h), and i) of Article 9.2 of Regulation (EU) 2016/679 based on Spanish law must be supported by a norm with the rank of law, which may establish additional requirements regarding their security and confidentiality.

In principle, in the transfer, the defendant indicated to overcome the exception of the prohibition of health data, Articles 9.2 c) and 9.2 i) of the GDPR.

In allegations to the proposal, it also adds that there may exist the circumstance of 9.2 g) of the GDPR, especially supported by an application similar to that made in the judgment of the TSJ of Madrid. In that judgment - contentious-administrative appeal filed through the special procedure for the protection of fundamental rights - against the health protocol of the official championship of territorial selections of the RFEB to be held in Murcia between 8 and 14/04/2022, regarding the obligation to present a COVID-19 vaccination certificate with complete vaccination schedule. Furthermore, the certificate was necessary, mandatory to participate in the competition, and had to be “uploaded to the personal area of the defendant's computer application.”

From the interplay of Articles 9.2 of the GDPR and 9.2 of the LOPDGDD, it follows that, regarding the circumstances described in sections g), h), and i) of Article 9.2 of the GDPR, it is expressly required that the enabling internal norm has the rank of law.

The requirement of law to restrict fundamental rights is imposed by the Spanish Constitution. In the words of the Constitutional Court, in STC 76/2019, of 22/05/2019, legal foundation 5 “(...) by express mandate of the Constitution, any state interference in the field of fundamental rights and public freedoms, whether it directly affects their development (Article 81.1 CE), or limits or conditions their exercise (Article 53.1 CE), requires a legal enabling (see, among others, STC 49/1999, of April 5, FJ 4). Thus, the reservation of law is a constitutional requirement.”

The defendant exceptions the processing of health data obtained, linking them to the fact that the following articles apply as exceptions:

- "9.2.c) the processing is necessary to protect vital interests of the data subject or another natural person, in the event that the data subject is not physically or legally capable of giving consent."

It cannot be appreciated that Article 9.2.c) of the GDPR exempts the processing of health data, given that the procedure is not based on consent, and applies to all athletes, and does not apply the aspect that "the data subject is not incapacitated, physically or legally, to give consent."

- "9.2.i) the processing is necessary for reasons of public interest in the field of public health, such as the protection against serious cross-border threats to health, or to ensure high levels of quality and safety of health care and of medicines or medical products, based on Union law or the laws of the Member States that establish adequate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy."

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Regarding the mention of a Ministerial Order from the Madrid Department, 1244/2021, also as an exception to the prohibition, in addition to competitions being held outside this territorial scope by Clubs from other autonomous communities, it is not explained why this regulation would be applicable; it does not contain any provisions regarding vaccination or antigen tests.

Furthermore, it adds that this processing of health data occurs under the application of the seventeenth additional provision of the LOPDGDD.

The rules of the seventeenth additional provision of the LOPDGDD determine, among other things, that the circumstances of Article 9.2 i) of the GDPR alleged by the respondent to process health data are supported by the regulations it indicates. Under some of these related to public health during the pandemic, in order to prevent the spread of contagion, measures can be established in case of risk to public health, with a duration that will not exceed the time required by the risk situation that motivated them. However, for this specific case, there is neither in them nor in the development regulations any specification that expressly states that for the sports competition context there arises a necessity for reasons of public interest in the field of public health to establish the aforementioned treatment of mandatory vaccination or PCR tests.

This specific obligation must be carried out with regulatory support at the level of law, as it affects a fundamental right.

The regulatory coverage of the measures that health authorities consider urgent and necessary for public health, and which involve limitation or restriction of fundamental rights, is found in health legislation. Specifically, in Organic Law 3/1986, of April 14, on Special Measures in Public Health, Law 14/1986, of April 25, General Health Law, Law 33/2011, of October 4, General Public Health Law. Law 2/2021, of March 29, on urgent measures for prevention, containment, and coordination to address the health crisis caused by COVID-19, establishes protocols that include ventilation, cleaning, and disinfection measures appropriate to the characteristics of workplaces, centers, entities, or holders of economic activities. This Law states that the adoption of necessary measures for compliance with the law will correspond to the General Administration of the State with the collaboration of the Autonomous Communities.

Moreover, the "conduct of diagnostic tests for infection for the detection of COVID-19 is limited to those cases where there is a prior prescription by a physician and conforms to criteria established by the competent health authority." (second section of Order SND/344/2020 of April 13, which establishes exceptional measures for the reinforcement of the National Health System and the containment of the health crisis caused by COVID-19, BOE (April 14, 2020). The approval of health protection regulations related to competitions must be carried out, in accordance with the provisions of the general prevention and hygiene measures against COVID-19, by health authorities.

The respondent, a national entity, also mentions the successive orders.

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Ministerial orders from the Health Department of the Community of Madrid regarding preventive measures to address the health crisis caused by SARS COV 2, which additionally serve to support the measures imposed on its athletes, beyond the framework of the Protocols indicated. These are provisions that, in line with the fluctuations of the context and the development of the spread and consequences of the virus, have been modified over time. These rules apply when the competition takes place in the aforementioned CCAA or is organized by any Federation that is part of said CCAA, so the application of this regulation cannot be extrapolated to any territorial scope other than the Community of Madrid.

Nevertheless, it is indicated that such provisions contemplate measures that refer to various sectors and social activities, mentioning among them, the practice of federated sports activities and competitions. They are regulated in order 572/2021 of 7/05, BOCM 8/05/2021, effective from 9/05/2021, modified by order 1177/2021 of 16/09 effective from 20/09/2021, with the first being repealed by order 1244/2021 of 1/10 (effective from 4/10). This last one, in turn, modified by order 439/2022, of 28/03, BOCM 29/03, and order 576/2022 of 21/04, BOCM 22/04, effective from April 22. Therefore, it would be evidenced that over time there have been different versions of the article that could refer to diagnostic tests for active SARS.COVID-2 infection, but not to vaccination.

Thus, the currently valid wording of the aforementioned article, through the last provision cited, states:

“Forty-fifth. Practice of federated sports activity

“For the celebration of competitions, the Madrid sports federations must have a protocol in accordance with the preventive and hygiene measures established generally in this Order and in the applicable provisions, which identifies potential contagion situations and establishes measures for managing the risk of contagion adapted to the specific circumstances. This protocol will be mandatory for all federative bodies and must be published on the corresponding sports federation's website.”

However, it is necessary to refer to the different wordings and their period of validity RD 572/2021

“FORTY-SEVENTH. Practice of federated sports activity

...4. In official competitions of state scope and non-professional nature and international competitions that are under the organizational tutelage of the Spanish sports federations taking place in the territory of the Community of Madrid, the Protocol for the return of official competitions of state scope and non-professional nature in the 2020/2021 season, developed by the Higher Sports Council and signed by all Autonomous Communities, the Spanish Federation of Municipalities and Provinces, Spanish Sports Federations, the Association of Spanish Sports, the Spanish Paralympic Committee, the Spanish Olympic Committee, and competition organizers will apply.

A new section 5 is introduced in this provision by order 1177/2021 of 16/09 which states:

“5. In the event that federated training or competitions take place in indoor facilities, the use of masks may be exempted exclusively for the athletes participating in them and during the time they are participating, provided that preventive measures are adopted and a diagnostic test for active infection of SARS-CoV-2 is conducted no more than forty-eight hours prior to the training or competition.”

In Order 1244/2021, dated 1/10/2021, this section 5 is not mentioned in Title IX “sports activity,” which is reintroduced in Order 439/2022 dated 28/03, despite having been modified by the latter.

In any case, the dilemma in indoor competitions would be between wearing a mask or undergoing a diagnostic test; however, the respondent, by invoking this regulation from the Community of Madrid, not only disregards the territorial scope of application but also expands the scope in its protocol to any competition without distinction between indoor and outdoor, including vaccination.

The fact that the protocol has been published or developed by the medical services of the Federation,

or that it is controlled by such personnel, as stated by the respondent, does not justify the exception regarding the processing of athletes' data, who hold a right over special data, which involves, among others, the right to physical integrity and informational self-determination.

Thus, athletes are imposed a limitation on their individual and fundamental right to their personal data, referring to information about their health, which may consist of providing the respondent with a vaccination certificate or repeated PCR diagnostic tests for each competition in which they wish to compete. The tests or certificates are not displayed but are stored and kept for a period that would correspond to the entire 21/22 season.

The reasoning of the respondent that rights are not affected, citing as an example the rulings of the Supreme Court in which it was determined that the display of the vaccination certificate or test did not affect privacy or personal data, is valid in that matter, which discusses a previously published regulation that supposedly serves as support for the actions it prescribes and that was ratified or confirmed by the judicial bodies, whereas here there is no support that legitimizes what is required of athletes, which does not consist merely of the display of the vaccine or PCR, but rather the processing of data and their retention, with the respondent establishing the means and purposes for their achievement, which leads to the aforementioned requirement. There is also a difference between one document and another and their validity; while the vaccine is free within the public Social Security system, in this case, it is not clear that the PCR tests are funded by the requester of the same, but rather by the athlete.

Given these circumstances, it is considered that the conduct of the respondent constitutes a violation of Article 9 of the GDPR.

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Regarding the allegation made by the defendant in the proposal, concerning the ruling of the TSJ of Madrid, which indicates that it implies authorization for the processing of health data through the protocol that she had established, it should be noted:

- "The special procedure established in Articles 114 et seq. of the LJCA is intended solely and exclusively for the judicial protection of fundamental rights and public freedoms recognized in Articles 14 to 29 and 30.2 of the Constitution. Therefore, any issues affecting the mere ordinary legal-administrative legality of the contested act are excluded from this preferred and summary route, as long as they do not simultaneously involve a violation of the aforementioned rights. The Chamber must limit its jurisdictional action to determining whether the contested act negatively impacts or violates the cited rights."

- As emphasized in the proven facts, the protocol of the CSD did not establish any obligation for athletes, either regarding vaccination or PCR tests, nor regarding their processing, since the defendant could also have chosen the option not to collect, not to store, and not to retain the documents through the computer application, choices that the defendant directly makes in her protocol under the pretext of the CSD Protocol.

The legal basis FIFTH of the ruling recommended that a specific COVID-19 test be conducted, the purpose of which would be to ascertain the situation of the athletes and team members (eighth section), - it also added that these protocols necessarily had to be adapted to the health situation at each moment. It is also mentioned that "In the Annex of the resolution of March 2, 2022, from the General Director of Sports (Murcia) (which is not a health authority, by the way), establishing the protocol for action in sports activities in the Region of Murcia, published in the Official Bulletin of the Region on March 4, 2022, in section three concerning participants in sports activities, it is established: 'It is recommended that all athletes, coaches, and referees or judges complete the vaccination schedule.' It is also established that all official competitions of a state scope and non-professional nature that take place will be governed by the protocol of the Superior Council of Sports and the Spanish sports federations. That is to say, it is evidenced that the contested Federation imposes as

mandatory the complete vaccination schedule or negative tests, when the administrative authorities did not mention such a measure.

- The ruling, after indicating that the defendant collected data, reproduces excerpts from rulings that indicate that the voluntary presentation of documents to access leisure establishments does not obligate the provision of medical data, and that data cannot be collected nor a file created, to then indicate in the same legal basis that "It is established, therefore, that the fundamental right to data protection is not limited by the measure being proposed," without highlighting that, as in this case, it is not merely a presentation of data, but that they were also uploaded to the personal area, which corresponds to the scheme and function of data processing defined in the GDPR –

To this, the ruling adds:

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"The administrative powers that justify the adoption of the measures described in the Protocol, which involve the restriction of fundamental rights of citizens, are initially legitimized by Article 43 of the Spanish Constitution, which, after recognizing in its first paragraph the right to public health, establishes in its second paragraph that: 'It is the responsibility of public authorities to organize and safeguard public health through preventive measures and the necessary provisions and services. The Law shall establish the rights and duties of all in this regard.' The basic development of this constitutional principle guiding the State's social policy is found in Law 14/1986, of April 25, General Health Law, in Organic Law 3/1986, of April 14, on Special Measures in Public Health, issued by virtue of the competence attributed in health and hygiene matters by Article 148.1.21 of the Spanish Constitution to the Autonomous Communities, and in Law 41/2002, of November 14, which regulates the autonomy of the patient and rights and obligations regarding information and clinical documentation, which provides in its Article 9.2.a for the possibility of conducting clinical interventions without the patient's consent when there is a risk to public health (Article 9.2.a), requiring that these interventions, carried out under the protection of Organic Law 3/1986, be reported to a judicial authority if they involve forced hospitalization within a maximum period of 24 hours. Understanding that health services are essential to respond to the health problems of the community, Law 33/2011, of October 4, General Public Health Law, states in its Article 54: '1.- Without prejudice to the measures provided for in Organic Law 3/1986, of April 14, on Special Measures in Public Health, exceptionally and when required by reasons of extraordinary seriousness or urgency, the General Administration of the State and those of the autonomous communities and the cities of Ceuta and Melilla, within the scope of their respective competencies, may adopt any measures necessary to ensure compliance with the law. 2.- In particular, without prejudice to what is provided for in Law 14/1986, of April 25, General Health Law, the competent authority may adopt, by reasoned resolution, the following measures: c) The preventive closure of facilities, establishments, services, and industries. d) The suspension of the exercise of activities. f) Any other measure in accordance with current legislation if there are reasonable indications of risk to health, including the suspension of actions in accordance with the provisions of Title II of this law. 3.- The measures shall be adopted after hearing the interested parties, except in cases of imminent and extraordinary risk to the health of the population, and their duration shall not exceed the time required by the risk situation that motivated them. The costs arising from the adoption of precautionary measures contemplated in this article shall be borne by the responsible person or company. The measures adopted must, in any case, respect the principle of proportionality.'

Now, if the CSD administrative authority only recommended in its protocol the performance of tests, it did not mention anything about providing vaccination, just as the sports authority of the Autonomous Community of Murcia, the Federation believes that it can collect, in the development of said protocol, the complete vaccination schedule or PCR test, which is not only exhibited but is collected, stored, and preserved during the competition season. Thus, it becomes responsible for the treatment of a measure limiting rights, exceeding the limits of what the CSD protocol indicates, clearly outside the limits of the

aforementioned protocol, that is, more than a 'mirror' protocol, it exceeds the thresholds provided, being considered as holding powers that exceed what may be its faculties to organize the competition, and without respecting, as is clearly seen in this procedure, the right to information in the collection of those data and lacking an enabling cause to collect, preserve and..."

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to store (process, not mere display) this health data in the form of a certificate or test, imposing on the respondent a measure from an entity with the authority to impose restrictions for public health reasons, which in this case it lacks. Therefore, it cannot be inferred from the alleged judgment that the respondent may have the authorization to process the health data of the athletes of its federation through its own sports protocol.

VI

Regarding the form and content of complying with the right to information for those affected in the collection of data, reference is made to the "information clause for affiliation" (document 10) which states:

- "In accordance with current regulations on the protection of personal data, we inform you that the REAL FEDERACIÓN ESPAÑOLA DE BALONMANO (hereinafter, R.F. ESPAÑOLA DE BALONMANO) is responsible for the processing of your personal data for the purpose of carrying out all necessary management to manage your affiliation with R.F. ESPAÑOLA DE BALONMANO. We also inform you that the processing of your special data, for example, health, will be carried out exclusively when necessary and under the supervision of the official medical services."

- "The legitimacy of the processing of your data derives from the execution of a contract, consent of the interested party, compliance with a legal obligation, or based on the legitimate interest of both parties. The recipients of your data will be the different departments of the Federation, as well as third parties to whom we transfer your data, when it is lawful in accordance with the provisions of current regulations on the protection of data or those communications necessary for the proper performance of the functions of R.F. ESPAÑOLA DE BALONMANO."

In the first paragraph, it does not define the purpose of the processing, doing so generically as "special data, for example, health, will be carried out exclusively when necessary and under the supervision of the official medical services," without the expression "when necessary" describing the purpose in a specific and explicit manner. In addition to the information provided and the operation explained by the respondent, such supervision by the official medical services of the Federation is not evident, as the athlete uploads the vaccine or test to a management platform of the respondent, which is verified by the COVID responsible employee of the Federation who signed a confidentiality agreement. Such mention would not add anything specific.

The second paragraph is unclear and does not distinguish or correlate between the two managements: affiliation, health data, which is each of the legal basis or legitimacy that allows the processing. The respondent has explained that within the processing of "affiliation," the act of affiliation or registration in the federative license that occurs each season at the request of the athlete belonging to a Club is differentiated, and in addition, during the 21-22 season, the collection of data resulting from the pandemic: vaccination or diagnostic test is added. In the legitimacy of the processing, it does not make such a distinction, and does not.

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would be applicable in this case according to the information contained in that document.

10 consent or legitimate interest for the processing of COVID data.

Article 4.9 of the GDPR defines recipient as:

“9) ‘recipient’: the natural or legal person, public authority, service, or other body to which personal data are disclosed, whether or not it is a third party. However, public authorities that may receive personal data in the context of a specific investigation in accordance with Union or Member State law shall not be considered recipients; the processing of such data by those public authorities shall be in compliance with the data protection rules applicable to the purposes of the processing;”

In the clause, the mention of “The recipients of your data will be the various departments of the Federation, as well as third parties to whom we transfer your data, when it is lawful in accordance with the provisions of the current data protection regulations” seems obvious because within the data controller, one cannot speak of recipients.

The respondent, in its allegations to the initiation agreement, when the processing of this type of data had already ceased (ending at the start of the 22/23 season), provides rectification of the information in document 2.

Furthermore, in the initiation agreement, it was noted that various elements required by Article 13 of the GDPR were not included, which states:

“1. When personal data relating to a data subject are obtained from the data subject, the data controller, at the time of obtaining these data, shall provide the data subject with all the information indicated below:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or by a third party;
- e) the recipients or categories of recipients of the personal data, if any;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, a reference to the appropriate safeguards and the means to obtain a copy of them or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time of obtaining the personal data, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;

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- b) the existence of the right to request the data controller access to personal data concerning the data subject, and its rectification or deletion, or the limitation of its processing, or to object to the processing, as well as the right to data portability;

- c) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent prior to its withdrawal;

- d) the right to lodge a complaint with a supervisory authority;

- e) whether the communication of personal data is a legal or contractual requirement, or a necessary requirement for entering into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;

- f) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, significant information about the logic involved, as well as the significance and the expected consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for

which they were collected, it shall provide the data subject, prior to such further processing, information about that other purpose and any relevant additional information in accordance with paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.”

Article 11 of the LOPDGDD states: “1. When personal data is obtained from the data subject, the data controller may fulfill the information duty established in Article 13 of Regulation (EU) 2016/679 by providing the data subject with the basic information referred to in the following paragraph and indicating an electronic address or other means that allows easy and immediate access to the remaining information.

2. The basic information referred to in the previous paragraph must contain, at least:

- a) The identity of the data controller and, if applicable, of its representative.
 - b) The purpose of the processing.
 - c) The possibility of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679.”
- The respondent stated that it provided information in layers. In the first layer, considered as document 10, “information clause affiliation,” it included:

- a) The identity of the data controller and, if applicable, of its representative.
- b) The purpose of the processing.
- c) The possibility of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679.

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The second layer, as additional information, was found in the link www.rfebm.com which led to document 9: “privacy policy,” which contains, among other things, the contact details of the DPO, and the right to lodge a complaint with a supervisory authority.

Regarding the first layer, there was a deficiency in that the purposes of the processing of health data were not specified, it was not explicit and specific, and without specifying its legal basis. According to the respondent, this requirement was to prevent contagions in the competition as a preventive measure.

It should be noted that since the 22/23 season, the collection of vaccination data is no longer used, so data could not be collected with the updated information.

There is an inherent tension in the GDPR between, on one hand, the obligation to provide data subjects with the complete information necessary under the GDPR and, on the other hand, to do so in a concise, transparent, intelligible, and easily accessible manner. Layered information can help resolve this tension, estimating that at the first level, the design and arrangement and content will be such that the data subject obtains a clear overview of the information available regarding the processing of their personal data. The first level is recommended to include details of the purposes of the processing, the identity of the controller, and a description of the rights of the data subject, emphasizing the information with the greatest impact for the data subject and the processing that may be most surprising to them.

From the analysis of the content of the information provided to athletes and other individuals in the group who had to submit health data, it is evidenced that before the start of the initiation agreement, the information that should have been provided in the collection and processing of data violated Article 13 of the GDPR and was not rectified until after the issuance of the initiation agreement of 6/09/2022.

VII

It is considered that the facts presented violate the provisions of Articles 9 and 13 of the GDPR, to the extent expressed in the previous Legal Grounds, which constitutes the commission of the infringements typified in Article 83, paragraph 5.a) and b) of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states that:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR

or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of data subjects under Articles 12 to 22.”

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In this regard, the LOPDGDD, in its Article 71, establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, Article 72 of the LOPDGDD indicates:

“Infringements considered very serious.

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein, and in particular, the following:
[...]

e) The processing of personal data of the categories referred to in Article 9 of Regulation (EU) 2016/679, without any of the circumstances provided for in that provision and in Article 9 of this organic law being present.

[...]

Article 74 of the LOPDGDD indicates: “The remaining formal infringements of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 are considered minor and shall be subject to a one-year statute of limitations, and in particular, the following:

a) The failure to comply with the principle of transparency of information or the right to information of the affected party by not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679.

VIII

Paragraphs d) and i) of Article 58.2 of the GDPR provide as follows:

“Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

“d) order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified timeframe;”

“i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;”

The imposition of adjustment measures in processing is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

IX

The determination of the sanctions to be imposed in this case requires compliance with the provisions of Articles 83.1) and .2) of the GDPR, which respectively state the following:

“1. Each supervisory authority shall ensure that the imposition of administrative fines in accordance with this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are effective, proportionate, and dissuasive in each individual case.”

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm suffered;
- b) the intentionality or negligence in the infringement;

- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

Within this section, the LOPDGDD provides in its Article 76, titled: “Sanctions and corrective measures”:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the performance of data processing operations.

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personal data.

- c) The benefits obtained as a consequence of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) To have, when not mandatory, a data protection officer.
- h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

3. It will be possible, complementarily or alternatively, to adopt, when appropriate, the remaining corrective measures referred to in Article 83.2 of Regulation (EU) 2016/679.”

According to the transcribed provisions, for the purpose of determining the amount of the fines to be imposed in this case, for which the defendant is held responsible, for the infringement of Article 9 of the GDPR, the following factors are considered concurrent as aggravating circumstances that reveal a greater unlawfulness and/or culpability in the conduct of the defendant:

- Article 83.2 g) “the categories of personal data affected by the infringement” include health data, sensitive due to the risks associated with its processing.

- Article 76.2.a) “The continuous nature of the infringement,” since the implementation of the system, starting from the 2021/2022 season, with the persistence not only when claimant 2 requested the removal of the requirements, which should have led to a detailed analysis, but also when the AEPD informed him of the complaint, indicating that it would continue processing the data.

For the infringement of Article 9 of the GDPR, a fine amount of 20,000 euros is considered.

For the infringement of Article 13 of the GDPR, the following factors are considered concurrent as aggravating circumstances that reveal a greater unlawfulness and/or culpability in the conduct of the defendant:

- Article 83.2.a) GDPR, "nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm they have suffered;" Decisive elements are missing in the informative clause of significant relevance, such as the legitimizing basis and the purpose, the importance of which cannot be overlooked due to the context and nature of the data processed, as it also pertains to its nature as a special data that in this case affected the entire group, novel data for the return to competition used during a season and subsequently discontinued.

Regarding the consideration of the adjustment of the informative wording that has been made after the initiation agreement, it cannot be considered to reduce the infringement, as

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affected a large number of athletes and for a very long period of time, not an episodic or monthly time. For the infringement of Article 13 of the GDPR, a fine of 7,000 euros is imposed.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on the REAL FEDERACIÓN ESPAÑOLA DE BALONMANO, with NIF

Q2878006B, for an infringement of the GDPR in the articles:

- 9, in accordance with Article 83.5.a), classified as very serious for the purposes of prescription in Article 72.1.e) of the LOPDGDD, a fine of 20,000 euros.

- 13, in accordance with Article 83.5.b), classified as minor for the purposes of prescription in Article 74.a) of the LOPDGDD, a fine of 7,000 euros.

SECOND: TO DECLARE the non-existence of an infringement in relation to the accusation against the REAL FEDERACIÓN ESPAÑOLA DE BALONMANO of a possible violation of what is established in Article 6.1 of the GDPR.

THIRD: TO NOTIFY this resolution to the REAL FEDERACIÓN ESPAÑOLA DE BALONMANO, attaching the GENERAL ANNEX.

FOURTH: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of 17/12, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account no. IBAN: ES00-0000-0000-0000-0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly

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file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of 13/07, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPCAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered concluded.

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Mar España Martí
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